

2:00 PM

LINE 8

25-CIV-00580

JOSE WALTER PAZ VS. EMILY KRISTEN BURNS

JOSE WALTER PAZ
EMILY KRISTEN BURNS

DANIEL DE SOTO
AKHILA GANAPATHY

PLAINTIFF JOSE WALTER PAZ' MOTION TO APPOINT SUCCESSORS IN INTEREST

TENTATIVE RULING:

Before the Court is the motion of Fernando Paz Romero, Steven Paz Romero, and Damaris Romero Canas to be appointed as the successors-in-interest to Plaintiff Jose Walter Paz who passed away November 22, 2025. (Declaration of Daniel A. De Soto in support, Ex. A.) Defendant Emily Kristen Burns filed her notice of non-opposition to the motion on August 5, 2026. The motion is GRANTED.

Under California law, “a cause of action for ... a person is not lost by reason of the person’s death...” (Code Civ. Proc. § 377.20, subd. (a).) Code section 377.30 addresses who may pursue a survival action for a decedent. Under this section, a “cause of action that survives the death of the person entitled to commence an action or proceeding passes to the decedent’s successor in interest, ... and an action may be commenced by the decedent’s personal representative or, if none, by the decedent’s successor in interest.” (Code Civ. Proc. § 377.30) A successor in interest is defined as “the beneficiary of the decedent’s estate” or any “other successor in interest who succeeds to cause of action or a particular item of the property that is the subject of a cause of action.” (Code Civ. Proc. § 377.11.)

Code of Civil Procedure section 377.32, requires one seeking “to continue a pending action or proceeding as the decedent’s successor in interest” file a declaration stating, among other things, (1) “ ‘[n]o proceeding is now pending in California for administration of the decedent’s estate[,]’ ” (2) the declarant is the decedent’s successor in interest, and (3) “ ‘[n]o other person has a superior right to commence the action or proceeding or to be substituted for the decedent in the pending action or proceeding.’ ” (Code Civ. Proc. § 377.32, subd. (a).)

Here, successors in interest Fernando Paz Romero, Steven Paz Romero, and Damaris Romero Canas have each submitted their section 377.32 declarations in support of the motion and plaintiff filed a notice of non-opposition. (De Soto Decl. Exs. A-D.) Accordingly, for good cause shown, the motion is GRANTED.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for plaintiff shall prepare a written order consistent with this ruling for the court’s signature, pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM

LINE 9

26-CIV-00804

AHMAD HAWAMDAH VS. ARJUN NARAYAN, ET AL.

AHMAD HAWAMDAH
ARJUN NARAYAN

MICHAEL INDRAJANA
GERALD T. LAU

PLAINTIFF AND CROSS-DEFENDANT HAWAMDAH'S DEMURRER TO RAVE FACTORY LLC'S CROSS-COMPLAINT

TENTATIVE RULING:

The court sustains with leave to amended plaintiff and cross-defendant Ahmad Hawamdah's (Hawamdah) unopposed demurrer to defendant and cross-complainant Rave Factory LLC's (Rave) cross-complaint.

Courts have construed the failure to oppose a motion as having an abandonment of the claims. (See *Herzberg v. County of Plumas* (2005) 133 Cal.App.4th 1, 20 ["Plaintiff did not oppose the County's [motion] to this portion of their seventh cause of action and have submitted no argument on the issue in their briefs on appeal. Accordingly, we deem plaintiff to have abandoned the issue."]; *Bell v. Am. Title Ins. Co.* (1991) 226 Cal.App.3d 1589, 1602 [failure to oppose a motion results in a waiver on appeal of any objection to the resulting order.]) While generally, especially when the issue is one of law the court substantively review the demurrer (*California Judge's Benchbook: Civil Proceedings Before Trial* § 6.22 (Thomson Reuters Mar. 2026 update)), in this case on August 5, 2026, the date opposition was due, counsel for Rave telephoned and emailed Department 4 to state that Rave would be filing an amended cross-complaint rather than filing an opposition. Rave has not yet filed an amended cross-complaint, but the court takes the communications to the court and the failure to file the opposition as an acknowledgement that at least some of Hawamdah's arguments have merit.

Accordingly, the court sustains the demurrer with leave to amend. Rave has ten days from notice of entry of order to file an amended cross-complaint. (Cal. Rules of Court, rule 3.1320(g); Code Civ. Proc., § 472b.)

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for Hawamdah shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.
